



## CHAPTER 4.

An Act to make better provision for the execution and maintenance of Land Drainage Works. A.D. 1914.

[27th November 1914.]

**BE** it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) If the Board of Agriculture and Fisheries (hereinafter referred to as "the Board") are of opinion that the execution of any work of drainage, embankment, or defence against water is desirable for the improvement or protection of any area, and that provision for the execution of the work should be made under the powers conferred by this Act, they may by Provisional Order constitute a body (corporate or unincorporate) for the purpose and authorise the execution of the work by the body so constituted, and make such provision for the execution and maintenance of the work as the Board may think proper.

Power to constitute bodies for the construction of land drainage works.

(2) A Provisional Order under this section may, amongst other things,—

- (a) define the area for the improvement or protection of which the work is executed ;
- (b) define the powers and duties of the body constituted by the Order ;
- (c) provide for the manner in which any expenses incurred by the body constituted by the Order are to be raised by conferring on that body such powers as to rating and borrowing as are exerciseable by Commissions of Sewers, or by requiring contributions from other drainage authorities exercising jurisdiction within the area defined by the Order, and may for that purpose vary and extend any rating and borrowing powers of any drainage authority so required to contribute ;

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(d) enable the body constituted by the Order to acquire land by agreement; or to acquire land compulsorily, if so authorised by an Order of the Development Commissioners made in accordance with the provisions of the Schedule to the Development and Road Improvement Funds Act, 1909, and as if such provisions with the necessary adaptations were incorporated in this Act;

9 Edw. 7. c. 47.

and the Provisional Order may contain any incidental, consequential, or supplemental provisions which may appear necessary or proper for the purposes of the Order.

(3) The provisions set out in the Schedule to this Act shall have effect with respect to Provisional Orders made under this Act.

Expenses of  
the Board.

2. The expenses of the Board in relation to a Provisional Order shall, if and so far as the Order so directs, be paid to the Board by the body constituted by the Order, and be treated as part of the administrative expenses of that body, and subject as aforesaid shall be paid out of money provided by Parliament.

Consent of  
Board of Trade  
in certain  
cases.

3. A Provisional Order made under this Act shall not authorise the construction, erection, or carrying out of any works on, under, or over any part of the foreshore or land contiguous thereto, or any dredging operations thereon, or the deposit of materials thereon, without the concurrence of the Board of Trade.

Short title and  
duration.

4.—(1) This Act may be cited as the Land Drainage Act, 1914.

(2) The powers of making Provisional Orders under this Act shall not be exercised after the expiration of two years from the passing of this Act, except for the purpose of amending an existing Provisional Order made under this Act; but nothing in this subsection shall prejudice or affect any powers or provisions contained in any Provisional Order made before the expiration of that period.

## SCHEDULE.

A.D. 1914.

Section 1.

### PROVISIONS AS TO PROVISIONAL ORDERS.

(1) Before making a Provisional Order under this Act the Board shall cause notice of the intention to make the Order and of the place where copies of the draft Order may be inspected and obtained, and of the time within and manner in which objections to the draft Order may be made—

- (a) to be sent to the council of every county, and to every commission of sewers, drainage board, or other drainage or navigation authority exercising jurisdiction within the area comprised in the draft Order ;
- (b) to be advertised for two successive weeks in some newspaper in general circulation within that area.

(2) Before making a Provisional Order the Board shall consider any objections which may be duly made to the draft, and may in any case and shall if so required by any such council or authority as aforesaid cause a local public inquiry to be held with respect to any objections made to the draft Order.

(3) The Board may submit to Parliament for confirmation any Provisional Order made by them in pursuance of this Act, but any such Order shall be of no force whatever unless and until it is confirmed by Parliament.

(4) If, while the Bill confirming any such Order is pending in either House of Parliament, a petition is presented against any Order comprised therein, the Bill, so far as it relates to such Order, may be referred to a Select Committee, and the petitioner shall be allowed to appear and oppose as in the case of private Bills.

(5) The Board may revoke, either wholly or partially, any Provisional Order made by them before the Order is confirmed by Parliament, but such revocation shall not be made whilst the Bill confirming the Order is pending in either House of Parliament.

(6) The making of a Provisional Order shall be *prima facie* evidence that all the requirements of this Act in respect of proceedings required to be taken previously to the making of such Order have been complied with.

(7) Any Provisional Order made under this Act may be repealed, altered, or amended by any Provisional Order made by the Board in like manner as the original Order and confirmed by Parliament.

(8) The Board may make regulations in relation to the publication of notices and advertisements under this Schedule and to the holding of and procedure at public local inquiries under this Schedule and to any other matters of procedure respecting the making of Provisional Orders under this Act.

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FOR

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